KELLY WEEPS BITTERLY

(Continued from Page 2)

u do not want such a man in your mmunity. There is a place for such n, gentlemen of the jury. These incent people were murdered. Kelly it. Deal with him like it is your ty to deal with him."

Sutton's Plea to Jury

Mr. Sutton spoke at length on the tempt of the state to make Kelly t a bad man. "This is unfair," he id. "Why have you found it necesry to draw other crimes into this se? The fires at Sutton, Neb., have thing to do with this case. These tters Kelly is accused of having itten have nothing to do with this se. I would like to ask you, gentlen of the jury, what these matters ve to do with the murder of Lena llinger? They want to make Kelly t a bad man because their evidence weak. I ask you to dismiss everying from your mind that does not ve a bearing on this case.

"Four months ago I arrived in Red k with Kelly and Mr. McKenzie and nally prevailed on the authorities re to take Kelly into custody.—Do u think I would have brought Kelly re as an attorney if his life or libty was endangered? We believed elly was not guilty. I believe Kelly innocent now in spite of the work the state agents. I could have filed arges of insanity in Chicago and d Kelly committed to an insane asym. Had I done this and permitted e cloud of murder to hang over my ient, I would have been guilty of one the greatest crimes ever committed a lawyer.

"Kelly's mother is now anxiously waiting the results of this trial in ngland and his wife's heart is being renched as she sits by his side daily roughout this trial. We want a verct of not guilty in this case. If he is t a proper man to keep out of the ylum, then commit him to an instition in the proper manner. But do t let another who is guilty, hide bend the case of this poor persecuted an.

"Now gentlemen, I want you to disiss from your mind these letters. He as insane when he wrote them. I ish I was satisfied that there was y misconduct on the part of the dendant in that house with any of ose girls. The evidence does not ow it. Mr. Hess has tried to poison ur minds with this inference. Only e doctor testified that there was a oodspot on Lena Stillinger's leg. ther physicians said there had been sexual misconduct. You have just good a right to make inferences as r. Hess has. Mr. Hess has no right call this man a sexual pervert. An torney who has an honest case does t have to inject poison in his cause. "I know it is natural for a man to t his heart go out to children. I fear u will let this feature of the case eigh too heavily with you gentlemen. "Mr. Hess says there are three moves in this case upon which you ould convict. He said Kelly did not ve children. He was seeking to instill me poison in your minds. If I ought this man was guilty, I would ave him put in an asylum now, beause I would have nothing to do with man who is cruel to children.

"I tell you Kelly could not do such job, physicians, state agents, slick, t and saucy as they are notwithanding. Remember, gentlemen, Kelly ad no grudge against these people. he throne of reason is destroyed hen one broods over grude. He did ot know the Moore or Stillinger amilies.

"It is not Kelly, but Wilkerson that lavner is after. It may be that Kelly ill have to go to the insane asylum ecause Havner wants to get Wilkerson, whom Havner hates with all the atred of his nature. Pa noia had estroyed Kelly's reason. Kelly had ever been in Villisca in all his life efore. If Kelly did that job he was n insane man.

"Dr. Ewing and his wife, whom I ave learned to love, would have been ndangered if Kelly had been blood hirsty. Kelly would have killed them nd satisfied his thirst for blood. He ould have killed many people before e got down there to Joe Moore's ouse. It is an old trick of the prosecution to place the responsibility of rime on one who has no money, pow- or friends.

"I believe all the occupants of the ouse were killed so that the murderr would have a chance to make his etaway. It may be the scream of Mrs. loore was the cause of the death of he children.

"Then the state tells us that another otive may have been that Kelly was reparing a sermon on the text 'Slay tterly,' and the third motive they ay, is he was a degenerate. I ask ou which one of these three motives urnishes the reason for the crime? oes he kill because he loves too uch? You cannot make these conicting reasons agree. I tell you if the ttorney general can ever hold up his ead again and walk the highways of owa, then he is a worse degenerate an he claims Kelly to be. Havner is ll of revenge for Wilkerson, and or Kelly is made the victim.

"They know if Kelly did this job in a fit of religious frenzy, then that does away with misconduct with this girl They cannot reconcile the causes.

"You will remember that not a single doctor said Kelly was a sane man. The state physicians, employed in state institutions, who draw their pay from the Havner political machine, not one of them said Kelly was sane

"Let's go back to Sioux Falls Those confessions were gotten when Kelly was not only a nut, but a car load of nuts. He was having delusions He thought he was the president of the United States; he thought he was Christ, and he thought he was the grandson of God It is wicked in them to take a man in that condition and fasten this crime on him It is some thing I should never do As I see the high office of the attorney general, I believe it is the duty of that office to protect the innocent as well as to prosecute the guilty. I believe Havner is guilty of misconduct in this and I do not see how the people of Iowa can ever forgive him.

"I don't believe Kelly ever had an idea of taking advantage of those girls Disease was ponding at the seat of reason and later he was committed to an insane asylum You know Ratcliff and Jackson said he was insane and came away from Sioux Falls leaving him there. And now Havner comes along and says Kelly did that job

"You know, gentlemen of the jury, Kelly felt his call to preach the gospel of the loving Christ Does that show the ear marks of a criminal degenerate? Do you think Mrs Kelly would lie. Mrs Kelly has starved all of her life The good people of this community bought the clothes she has on her back now The only thing they can say about her is she is devoted to her husband. She does not believe the marriage license is but a scrap of paper. Mrs Kelly says she packed her husband's grip before he left to preach in the country near Villisca She said she did not place in the grip a nightgown, a shirt, trousers or a vest Kelly did not need these

"I don't believe Keily did that job The man who did must have been smeared all over with blood Blood was scattered all over the house There was no blood found at Ewing's where Kelly stayed all night Where did the blood go?

"Hess says don't turn him loose, he is a dangerous man I will not stand in the way if Montgomery county sends him to an asylum, but I don't want to see him cover up the sins of another When you come to wipe out that confession there is nothing left against Kelly.

"When Kelly came back to Montgomery county he thought he would be given a chance to talk to his friends here. But he was taken to Logan, the home of Mr. Rock, who has been standing there by that door ever since this trial began, sneering when things were going against the prosecution and smiling when he thought they were going the other way. They questioned and intimidated poor Kelly. The state never had taken the cover off before they called Miss Longman. They destroyed poor Kelly's reason until he babbled like a goose, and then sent for the stenographer.

"I tell you gentlemen of the jury, this socalled Kelly's confession is a book of shame wrenched from Kelly, who was abused for hours and hours. Kelly was promised that he would be sent to an insane asylum if he made the statement Havner wanted him to make. They took the man away from his lawyers and Deputy Sheriff Atkins made love to him until he got Kelly's entire confidence. Kelly leaned too heavily on Atkins. He thought the man who sharpened the dagger for his heart was his benefactor and his friend.

"Kelly is very sensative. The detectives hounded him. Wherever he went there was a detective. The newspapers and detectives caused him to do many things he should not have done. God only, and Havner and Atkins know how Kelly was treated while he was in jail. I would not want to tell Havner what I would do if one of my family were treated so.

"If the state had had evidence enough they would not have gone down there in the darkness of the night when honest people were in bed, and when the confession was obtained under mental suggestion. Havner was not satisfied and he called for Hess and a stenographer. For this Havner should be removed from office and not allowed to practice law until he has been punished for this crime against this poor insane man."

There was a slight demonstration in the rear of the court room at this point of Judge Sutton's address. The attorney was interrupted by the court.

"If that is repated," Judge Boies warned the audience, "I will clear this court room. The crowd heretofore has been orderly while attending this trial. No disorder will be tolerated here, and I will stop anything of the kind if I have to appoint a hundred bailiffs to do so. If this is repated, you will go out of this court room and stay out."

"Gentlemen of the jury, Kelly has never said positively that he did this job," Judge Sutton continued. "He talked like a man in a dream. Havner tells him 'We know you did.' He says this over a hundred times. When Kelly was afraid Havner would not keep his word and send him to an insane asylum, he turns to Atkins and asks for advice Havner told him where the ax was. Havner told him about the shadow Havner told him that God said to do it. Some day there will be a hereafter and the man who oppresses the weak will be made to render an account."

Judge Sutton closed his address with an argument that it was a physical impossibility for Kelly to have committed the murders

"Mr Havner fifty times tried to make poor Kelly say that he had killed Joe Moore first," said the attorney "When it all wound up Kelly said he did not remember anything until the alarm clock went off"

Attorney Hysham's Plea

"We know some one entered the house of Joe Moore on the night of June 9, 1912 We know the members of that household were slain I am as interested as you, gentlemen of the jury, to apprehend the guilty party or parties If the guilty parties can be found, those parties should be made to suffer.

"You will remember the night of the crime was a dark night. It was cloudy. One witness testified that it was misty. The electric lights were out. The man or men who committed the crime took advantage of the darkness. The man or men went into the house practically blind or they went in with a light. As dark as it was outside it must have been doubly dark in the house.

"I have no doubt but that the man or men who went into that house must have struck a light, because it would have been impossible for him to have found his way in and out the rooms without a light

"The murderer went into the south room upstairs after he passed within a very short distance of the bed in which Joe Moore and his wife were sleeping In the south room four children were sleeping If Kelly's confession is true all of it is true, or none of it is true If the confession is true, Kelly went into the south room upstairs and killed four children who were sleeping less than eight feet from the bed occupied by Joe Moore and his wife in the north room This would have been an absolute impossibility

"You have got to assume that Joe Moore and his wife were in the adjoining room alive, because the children were killed first I say to you that Joe Moore and his wife were not sleeping while the thuds of the ax were pounding out the brains of these children

"Again is it said that Mrs. Moore was struck several times on the head while Joe Moore continued to sleep by her side. The murderer, according to the confession, then struck Joe Moore on the head, dashing out his brains. I do not believe these blows could have been struck in the dark.

"When the ax was swinging the ceiling was hit. It is these little details I am calling your attention to, because it is the little details this case will be decided on

"Grant then the man had a light. In this event he would have been doubly sure of being caught. The murderer could not have reached the foot of Joe Moore's bed, passed into the other room and killed four children without being detected. The flash of a light in your face at night after you have retired is more apt to awaken you than a sudden noise. But the state would have you believe the man went into that room carrying a lamp. I tell you that he never did such a thing.

"I don't care a rap about your confessions. If Kelly would stand up here now in this court room and swear to his God that he committed these crimes, I would not believe him. You can't kill six people upstairs in a flimsy house like that Joe Moore occupied without awakening the people down stairs. We have a right to speculate on this case, gentlemen of the jury. I want the state to explain whether these murders were committed in the dark or whether a light was burning in the rooms when the deeds were committed.

"It is not possible that one man could have committed this crime. There were more than one man in that house. The house had many facilities for hiding. It would have been no trick at all for one, two or three men to have secluded themselves in the house in the numerous closets that abounded in there.

"The men got in the house before Joe Moore and his family returned from church. They knew the habits of the members of the household and took advantage of the dark night. To my mind this crime is as great a mystery as it was June 10, 1912. I believe one man at least was hidden in the home when the family returned.

"The state tells you that an insane man committed the crime. I do not believe it. I tell you a man who will murder will kill a whole family in order to make good his escape.

"I believe a sane man or men com-

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